

CASSATION & ECHR · 1 OCT 2001

Cassation brief — McDonald's

TYPE	COURT	DATE	PARTIES
Appeal / remedy	The Court of Cassation	1 Oct 2001	From McDonald's France

SUMMARY SHEET

Defence brief — Court of Cassation · McDonald's France · 1 October 2001

Overview: defence brief filed on behalf of McDonald's France before the civil chambers of the Court of Cassation, in response to appeal to the Court of Cassation no. X 00-14 487 lodged by Bernard Collorafi and the companies SEBOL, B et O and LES PINS.

Key points

The brief traces the history of the dispute. By an agreement of 5 August 1987, McDonald's granted under lease-management (location-gérance) for twenty years the Antibes 1 business (Carrefour shopping centre), in return for a base fee of 12% of turnover excluding tax and a service fee of 5%. Collorafi, a former bank branch manager, completed the nine-month training. The agreement was transferred to SEBOL. After the decline in 1995, linked to the opening of a Quick restaurant, an agreement for Antibes Nord was concluded on 9 October 1996 (base fee raised to 20%) and transferred to B et O. McDonald's recalls the provision of the pre-contractual information required by the loi Doubin of 31 December 1989 and stresses the exceptional nature of the dispute.

Significance

A document from the cassation phase: in it McDonald's asks for the appeal to the Court of Cassation to be dismissed and requests an award under article 700 of the NCPC, in defence of the appeal judgment under challenge.

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Source: bernardcollorafi.org/en/documents/defence-brief-cassation-mcdonalds-appeal-collorafi-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.